

CARDHOLDER MEMORANDUM — CFPB COMPLAINT

SUPPORTING RECORD

Supporting documentation for a complaint to the Consumer Financial Protection Bureau against American Express

Cardholder: William J. Marceau
Email: wmarceau@marceausolutions.com
Account: American Express Blue Business Cash, ending 21007 (employee card ending 21049)
AmEx Cases: D-93497818 (Card ending 1007) / D-93497819 (Card ending 1049)
Merchant: Propane Fitness Ltd, Newcastle, United Kingdom
Date of this memorandum: Thursday, June 11, 2026
Amount in dispute: \$2,271.66 USD (foreign-exchange conversion shortfall)
Regulatory refs: CMA case CMAE2600101 & Action Fraud RF26040189625C

1. SUMMARY

On March 2, 2026 the cardholder was charged a total of **\$8,741.76 USD** (£6,300 plus foreign-transaction fees, at the \$1.3511/£ rate in effect that day) by Propane Fitness, a UK merchant, for a business-mentorship program that was misrepresented (sold as one-on-one coaching, delivered as group clinics). The charge was split across two cards on a single American Express Blue Business Cash account. The cardholder filed chargebacks, assigned cases **D-93497818** and **D-93497819**. American Express has credited only **\$6,470.10** — it refunded the £6,300 nominal at a parity rate of \$1.00/£ rather than the \$1.3511/£ rate actually charged, and reversed only part of the foreign-transaction fees. A shortfall of **\$2,271.66** has never been credited.

2. AMERICAN EXPRESS MISSED ITS OWN COMMITTED DECISION DATE

On **May 28, 2026**, on a recorded line, Supervisor **Michael (Employee ID HE0973A)** acknowledged that the disputed amount of record is \$8,741.76, confirmed the back-end disputes team was reviewing the FX shortfall, and committed that a decision would be issued **no later than Tuesday, June 9, 2026**. That date has passed. The cardholder's statement dated **June 10, 2026** shows no corrective credit, and American Express has made no contact. This follows at least two earlier representative promises of a 3-5 business-day callback that were never honored.

3. WHAT IS OWED — RECONCILIATION

The amount owed is not an estimate. It reconciles to the penny against American Express's own posted activity:

	Per Card (each)	Total (both cards)
Propane charge (Mar 2, 2026 @ \$1.3511/£)	\$4,255.97	\$8,511.94
Foreign-transaction fee	\$114.91	\$229.82
TOTAL CHARGED TO ACCOUNT	\$4,370.88	\$8,741.76
Refund credited — principal (Apr 9, par rate)	-\$3,150.00	-\$6,300.00
Refund credited — partial FX fee	-\$85.05	-\$170.10

TOTAL CREDITED TO DATE	-\$3,235.05	-\$6,470.10
SHORTFALL STILL OWED	\$1,135.83	\$2,271.66

Independent confirmation: the cardholder's **entire current statement balance is composed of this unrefunded amount**. Summing every line of the account's posted activity ties exactly to the statement balance American Express reports:

Component of current statement balance	Amount
Propane / FX shortfall not yet credited (both cards)	\$2,271.66
All other account activity, net (purchases less refunds & payments)	-\$36.85
CURRENT STATEMENT BALANCE (per AmEx, June 10, 2026)	\$2,234.81

In other words, once the \$2,271.66 corrective credit is posted, the account balance is reduced to approximately zero (a small credit balance of \$36.85 in the cardholder's favor). This demonstrates that the disputed balance American Express continues to bill is, in substance, the exact amount of the FX shortfall it has declined to credit.

4. WHY THE PAR-RATE REFUND IS INCORRECT

American Express's Notice of Dispute Information PDFs describe the chargeback as **£3,150.00 GBP** per case. The refund issued was **\$3,150.00 USD** per case — an implied rate of \$1.00 per pound, a parity that has not existed in modern foreign-exchange history. The original transactions posted to the cardholder's USD account at \$1.3511/£. To restore the account to the position it would have occupied absent the disputed charges, the refund must be computed at that same rate, and the foreign-transaction fees charged on the now-refunded transactions must be fully reversed.

5. RESOLUTION REQUESTED

American Express should post a corrective credit of **\$2,271.66** to the account (cases D-93497818 and D-93497819), bringing the balance to zero, and provide written confirmation of the credit and the resolution of both cases. If American Express declines, it should issue a written denial citing the specific rule under which a refund at a \$1.00/£ parity rate is permissible when the charge was made at \$1.3511/£.

Respectfully submitted,

William J. Marceau

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Naples, Florida, United States

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